

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 14-016
Amendments to Chapter 5 of Title 10 of the
Code of the Chickasaw Nation
"Sales Tax"

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Section 10-503 of Chapter 5 of Title 10 of the Code of the Chickasaw Nation established the Chickasaw Nation Sales Tax, at the rate of 3%, on the gross receipts of all items or goods or services bought, sold, rented, leased or exchanged, or any combination thereof, on all transactions occurring on, through, or by or with any enterprise which is located on lands of the Chickasaw Nation, and

WHEREAS, exemptions to that tax are granted in that section to tribally-owned business enterprises involved in gaming activities and to transactions with the Bureau of Indian Affairs, establishing a precedent for waiver or granting of exemption of that tax for certain specific purposes.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Chapter 5 of Title 10 of the Code of the Chickasaw Nation in the following manner (text which is underscored shall be inserted):

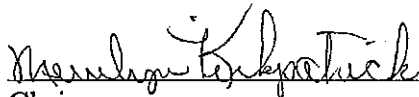
SECTION 10-507 SPECIAL EXEMPTION GRANTED.

There is hereby granted an exemption to the full amount of the Chickasaw Nation sales tax on all sales made to citizens of the Chickasaw Nation through the SmokeSignals Computer Company; provided, however, that proof of citizenship shall be required by SmokeSignals Computer Company at the time of any purchase for which sales tax would normally have been collected under this Title. A copy of such proof, provided by the purchaser, shall be retained as part of the records of such sale by the SmokeSignals Computer Company, and a report shall be filed with the Chickasaw Tax Commission on all such sales no later than the 10th day of each month.

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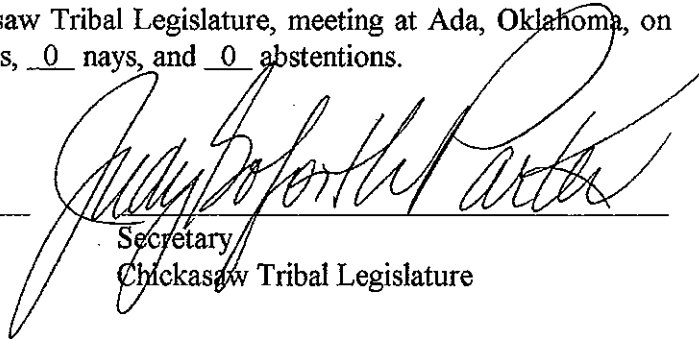
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Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 19, 1997, by a vote of 12 ayes, 0 nays, and 0 abstentions.



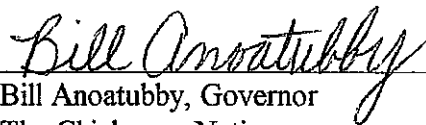
Chairperson

Chickasaw Tribal Legislature



Secretary

Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 22 1997

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Explanation: This resolution amends Chapter 5 of Title 10 of the tribal code of laws dealing with the tribal sales tax. The resolution amends that chapter by adding a new Section 10-507, which gives an exemption to the tribal sales tax for all Chickasaw Nation citizens who purchase items from the tribe's SmokeSignals Computer Company. To qualify for that exemption, a citizen must provide proof of their citizenship by CDIB and tribal citizenship card.

The computer company must provide a monthly report with the Chickasaw Tax Commission on all such tax-exempted sales by the 10th day of each month.

Requested By: Bill Anoatubby, Governor

Presented By: Lisa Shephard, Chairman
Legislative Committee